



DOMESTIC ABUSE EVIDENTIAL CHECKLIST

Joint CPS and ACPO Evidence Checklist is for use by Police Forces and CPS in cases of Domestic Abuse.

Checklist of information to be provided to CPS at the time of charging decision. This checklist does not replace the MG3, but should compliment it.

Officer in case: PC Byrne			
Staff No:	969613	Case Ref./URN: 45	AA 02098 20

Have you collected all available evidence, including material other than the complainant's Statement?			
	Yes	No	Comments
999 Call	☒	☐	Phone call from complainant.
Photographs; of scene and injuries (taken over time as injuries develop)	☒	☐	PNB from officer at scene - notes injuries
Admissions	☐	☒	
Medical evidence (if available at the time); signed consent form; medical exhibits, i.e. hair	☐	☒	comp didn't seek medical attention
Victim statement (include reference to previous DA, if relevant)	☒	☐	
Other statements – neighbours following house to house enquiries, children, attending Officer (to include visible injuries, signs of struggle, disposition of victim/offender, IDs of other persons present) and other witnesses	☒	☐	neighbour Lucy Doyle
CCTV/Headcam footage (if relevant/available)	☒	☐	BWF of officer on scene - D had left vicinity.
Is there relevant information to include from Police Records?			
Bail history and any breach orders (including civil)	☐	☒	
Previous Domestic Abuse incidents (including against other victims)/call-outs/pre-convictions – for defendant and victim/witnesses	☒	☐	Several previous incidents D had just been released from custody due to previous assault on C.
DASH or local equivalent risk identification checklist with outcome (i.e. MARAC case, high risk, standard risk)	☒	☐	High grading - MARAC referral made
Any civil orders/proceedings and whether there has been previous breaches	☐	☒	
Any previous allegations (with URNs) and how these allegations were concluded (if case did not proceed, why not?)	☒	☐	As above
Information regarding the victim and/or incident			
Whether victim has been contacted by suspect/friends/family	☐	☒	
Relationship status and history (to include domestic arrangements), Police view of future relationship and likelihood of recurrence/any threats	☒	☐	Although they do have a child together there is now no contact with that child due to social services intervention and the family court. C has indicated that she wishes to break from D to avoid future assaults
Counter allegations/defence	☐	☒	none at present
Is the victim supported by a specialist DA service?	☒	☐	

OFFICIAL-SENSITIVE: Personal

Ability/willingness of victim to attend court, give evidence and any special considerations	☒	☐	Victim supports a prosecution and is willing to attend court.
Special measures needed? And type (views of victim and IDAA/specialist support service) need to complete an MG2	☒	☐	MG2 PROVIDED
Does victim wish to retract? Have they previously retracted? Officers statement on retraction and views on witness summons (include victim/IDAA/specialist support service views)	☐	☒	
Safety of victim (victim's views and IDAA/specialist support service views)	☒	☐	Referred
Restraining Order – does the victim want a RO and if so with what terms?	☐	☒	
Victim Personal Statement	☐	☒	requested
Any location(s) to avoid in bail conditions	☒	☐	Victim's home address
Whether the Bail Amendment Act should be invoked in a custody case	☐	☒	
Information in relation to children			
Whereabouts of children during incident (include relation to victim/defendant and age)	☒	☐	Child to relationship is in care and not in further danger
Safety of children (Police and victim's views)	☒	☐	as above
Child Protection proceedings; include whether referral was made to Children's Services	☐	☒	already made and child removed previously

View 'Guidance' below.

Guidance Notes

Early and meaningful case building between Police and CPS in cases of Domestic Abuse is crucial to ensure effective prosecutions.

The information listed must be made available to CPS before charge decision in every case of domestic abuse. Prosecutors must consider information before making appropriate charging decisions.

CPS Legal Guidance on prosecuting domestic abuse is available here:

http://www.cps.gov.uk/legal/d_to_g/domestic_violence_aide-memoire/

Police inform CPS of any breach, further offences, submit files to CPS and supply interview record in a timely way. CPS guidance on charging in DA cases:

Prepare your case on the assumption that the **victim may in the end not support the prosecution**. Consider all information provided by the police (see above).

Ensure that you liaise with **IDAAs, Witness Care Units and specialist support organisations**, to ensure that the victim's needs particularly relating to safety are addressed throughout the life of a case.

Comprehensively endorse **MG3** including addressing any evidential strengths and weaknesses.

Ensure you have information in relation to **aggravating features and defence**.

Ensure that the Police follow Local Service Level Agreements by **providing all relevant material** to the Duty Prosecutor.

Ensure any action plan you provide the police is **detailed and prioritised**.

Consider **victim's evidence**:

- On withdrawal/retraction review see LG.
http://www.cps.gov.uk/legal/d_to_g/domestic_violence_aide-memoire/#a24
- Ensure specialist support is offered through an IDAA if available. And the case is progressed through SDAC.
- Has a Victim Personal Statement been taken and refreshed?
- Have you considered a PTWI?

OFFICIAL-SENSITIVE: Personal

Apply for suitable **bail conditions** to prevent further offences or intimidation but that do not restrict the victim and children.

Ensure **special measures** are considered and any application is made in a timely way and results communicated to the victim.

Consider **hearsay/bad character**.

Prevent unnecessary delay by taking **timely** decisions.

Find out details of the **defendant's previous misconduct**, if any, at the earliest opportunity so you can assess whether this evidence could be used as part of your case (*If the suspect has committed or is suspected of having committed acts of violence against different victims (a 'serial' perpetrator), as well as considering whether this information can be adduced as bad character evidence you should also consider if these offences have sufficient nexus to be joined in the same indictment (or can be heard as part of the same trial process in the magistrates' court). Consider time limit on summary only offences, and whether there is sufficient nexus.*

Explore **credibility of defendant's account**.

Consider **expert evidence**.

Find out whether there are any **concurrent or imminent public law or private law family proceedings or civil proceedings and remedies** involving the complainant and/or accused. Also, find out whether Social Services has been alerted to the abuse or involved with the family.